

Food Safety and Standards

Regulation 2(d) — Definition of “Claim”

Title: Definition of Claim

Jurisdiction: India

Category: Advertising

Source Citation: Food Safety and Standards (Advertising and Claims) Regulations, 2018, Regulation 2(d)

Plain English Summary:

This defines what a “claim” means when a food product is promoted or labelled. For an Ayurveda-Aahara startup, statements about the product’s origin, nutritional properties, nature, processing, composition, or other qualities can be treated as claims and must follow FSSAI requirements.

The Exact Legal Text:

(d) “claim” means any representation which is printed, oral, audio or visual and states, suggests, or implies that a food has particular qualities relating to its origin, nutritional properties, nature, processing, composition or otherwise;

Keywords/Triggers:

food claim, Ayurveda Aahara claim, nutritional claim, product claim, label claim, food representation, advertising claim, claim definition

Regulation 4 — General Principles

Title: General Principles for Claims

Jurisdiction: India

Category: Advertising

Source Citation: Food Safety and Standards (Advertising and Claims) Regulations, 2018, Regulation 4

Plain English Summary:

Food claims must be truthful, clear, meaningful, and not misleading. Claims about nutritional or health benefits must be scientifically substantiated, and advertisements must not deceive consumers or make claims inconsistent with the product label.

The Exact Legal Text:

4. General principles.-

(1) Claims must be truthful, unambiguous, meaningful, not misleading and help consumers to comprehend the information provided.

(2) Claims shall not encourage or condone excess consumption of a particular food.

(3) Claims shall not state, suggest or imply that a balanced and varied diet cannot provide appropriate quantities of nutrients as required by the body.

(4) Where the claim benefit is related to or dependent on the method of preparation of the food the same shall be provided on the label.

(5) Claims shall specify the number of servings of the food per day for the claimed benefit.

(6) The claim that a food has certain nutritional or health attributes shall be scientifically substantiated by validated methods of characterising or quantifying the ingredient or substance that is the basis for the claim.

(7) Where the meaning of a trade mark, brand name or fancy name containing adjectives such as “natural”, “fresh”, “pure”, “original”, “traditional”, “authentic”, “genuine”, “real”, etc., appearing in the labelling, presentation or advertising of a food is such that it is likely to mislead consumer as to the nature of the food, in such cases a disclaimer in not less than 3mm size shall be given at appropriate place on the label stating that –

“*This is only a brand name or trade mark and does not represent its true nature”.

(8) All disclaimers related to a claim shall be conspicuous and legible.

(9) Notwithstanding the mandatory declaration of Food Safety and Standards Authority of India logo and license number as per Food Safety and Standards (Packaging and Labelling) Regulations, 2011, no claim or promotion of sale, supply, use and consumption of articles of foods shall be made using Food Safety and Standards Authority of India logo and license number.

(10) Advertisements shall also not undermine the importance of healthy lifestyles.

(11) Advertisements for food or beverages shall not be promoted or portrayed as a meal replacement unless otherwise specifically permitted as a meal replacement under any other Regulations made under Food Safety and Standards Act, 2006 (34 of 2006)

(12) Claims in advertisements shall be consistent with information on the label of the food or beverage.

(13) No advertisement shall be made for food products which is deceptive to the consumers.

(14) Every declaration which is required to be made on advertisements under these regulations shall be conspicuous and legible.

Keywords/Triggers:

misleading claim, truthful claim, scientific substantiation, deceptive advertisement, label consistency, Ayurveda food claim, natural claim, traditional claim

Regulation 7 — Health Claims

Title: Health Claims

Jurisdiction: India

Category: Advertising

Source Citation: Food Safety and Standards (Advertising and Claims) Regulations, 2018, Regulation 7

Plain English Summary:

Health claims must satisfy specific conditions and be supported by scientific evidence. This is particularly important for Ayurveda-Aahara products because statements suggesting health benefits need appropriate evidence, quantity information, directions for use, and other required declarations.

The Exact Legal Text:

7. Health claims.- (1) Health claims shall comply with the following conditions and declarations, namely:-

(a) the health claim must consist of two parts, namely:-

(i) information on the physiological role of the nutrient or substance or an accepted diet- health relationship; and

(ii) information on the composition of the product relevant to the physiological role of the nutrient or substance or the accepted diet-health relationship unless the relationship is based on a whole food or foods whereby the research does not link to specific constituents of the food;

(b) if the claimed benefit is attributed to a constituent in the food, for which a recommended dietary allowance value is established, the food in question shall be-

(i) a source of or high in the constituent, in accordance with conditions specified in Schedule I, in the case where increased consumption is recommended; or,

(ii) low in, reduced in or free of the constituent, in accordance with conditions specified in Schedule I, in the case where reduced consumption is recommended;

(c) a statement of the quantity of a nutrient or a substance that is the subject of the claim, per 100g or 100ml or per pack (single consumption pack) of the food;

(d) where applicable, target group shall be mentioned or where a certain contraindication exists, advice to vulnerable groups on consumption or avoidance of the food shall be made available;

(e) directions for use of the food to obtain the claimed benefit in the context of the diet and other lifestyle factors where appropriate;

(f) maximum safe intake of the food or the constituent, if necessary.

(2) Nutrient function claims and other function claims may be made based on current relevant scientific substantiation and to provide sufficient evidence on the type of claimed effect and the relationship to health as recognised by generally accepted scientific review of the data and the scientific substantiation shall be reviewed by food business operator as new knowledge becomes available and claims updated accordingly.

(3) No reduction of disease risk claims shall be made that is not in accordance with the conditions specified in Schedule III.

(4) Food articles that are fortified as per Food Safety and Standards (Fortification of Foods) Regulations, 2018 may make health claims as provided in Schedule IV and flexibility in the wordings of the claim statement is acceptable, if the meaning of the claim is not altered.

(5) Where a claimed health benefit is attributed directly to the product, it shall be based on statistically significant results from well-designed human intervention studies, conducted by or under guidance of established research institutions, in line with the principles of GCP (Good Clinical Practices) and peer reviewed or published in a peer reviewed reputed scientific journal.

Keywords/Triggers:

health claim, Ayurveda health claim, disease risk claim, scientific evidence, health benefit, human intervention study, nutrient function claim, health claim approval

Regulation 10 — Prohibited Claims

Title: Prohibited Claims

Jurisdiction: India

Category: Advertising

Source Citation: Food Safety and Standards (Advertising and Claims) Regulations, 2018, Regulation 10

Plain English Summary:

Certain food claims are prohibited, especially claims that suggest a food can prevent, alleviate, treat, or cure a disease unless specifically permitted by applicable regulations. This is highly relevant to Ayurveda-Aahara products because the AI assistant should warn users when their proposed wording may cross into prohibited medical claims.

The Exact Legal Text:

10. Prohibited claims.- (1) no claims shall be made which refer to the suitability of the food for use in the prevention, alleviation, treatment or cure of a disease, disorder or particular physiological condition unless specifically permitted under any other regulations made under Food Safety and Standards Act, 2006 (34 of 2006).

(2) There shall not appear in the label of any package, containing food for sale the words “recommended by the medical or nutrition or health professionals” or any words which imply or suggest that the food is recommended, prescribed, or approved by medical practitioners or approved for medical purpose.

(3) No product shall claim the term “added nutrients”, if such nutrients have been added merely to compensate the nutrients lost or removed during processing of the food

(4) Foods for special dietary uses or foods for special medical purposes shall not carry a claim unless specifically permitted under any other regulations made under Food Safety and Standards Act, 2006 (34 of 2006).

(5) Claims which do give rise to doubt or suspicion about the safety of similar food or which may arouse fear shall not be made.

(6) No health claims shall be made for foods that contain nutrients or constituents in quantity that increase the risk of disease or an adverse health-related condition.

(7) No advertisements or claims for articles of foods shall be made by any food business operator that undermines the products of any other manufacturer for the purpose of promoting their products or influencing consumer behavior.

Keywords/Triggers:

prohibited claim, disease cure claim, disease treatment claim, medical claim, Ayurveda food advertisement, misleading medical claim, prohibited health claim, food claim restriction

Regulation 11 & 12 — Approval of Claims

Title: Approval and Procedure for Approval of Claims

Jurisdiction: India

Category: Advertising

Source Citation: Food Safety and Standards (Advertising and Claims) Regulations, 2018, Regulations 11 and 12

Plain English Summary:

Certain reduction-of-disease-risk claims require prior approval from the Food Authority. The application must provide details such as the proposed claim, relevant ingredient or substance, validated analytical methods, scientific evidence, and human intervention studies where applicable.

The Exact Legal Text:

11. Approval of claims.- The food business operator or marketer shall seek prior approval from the Food Authority for reduction of disease risk claims other than those that are defined and for which criteria are laid out under these regulations or any other regulations made under the Food Safety and Standards Act, 2006 (34 of 2006).

12. Procedure for approval of claims.- (1) The food business operator shall submit an application along with applicable fees as prescribed by Food Safety and Standards Authority of India consisting of the following information, namely:-

- (i) Claim to be made;
- (ii) Name of ingredient, nutrient or substance on the basis of which the claim is to be made;
- (iii) Validated Method of analysis of ingredient or substance for which the claim is to be made;
- (vi) Scientific information or materials substantiating the claim;
- (v) How is the claim clear and meaningful and help consumers to comprehend the information provided;
- (vi) Well-designed human intervention studies in case of health claims conducted by or under guidance of established research institutions; and
- (vii) Any other useful information.

Keywords/Triggers:

claim approval, FSSAI claim approval, disease risk claim approval, scientific substantiation, claim application, health claim evidence, Food Authority approval, Ayurveda claim permission

Schedule V:

Title: Schedule V — Use of Certain Words or Phrases

Jurisdiction: India

Category: Advertising / Claims / Standards

Source Citation: Food Safety and Standards (Advertising and Claims) Regulations, 2018, Schedule V [See Regulation 9(2)]

Plain English Summary:

Schedule V specifies when food businesses can use words such as “Natural”, “Fresh”, “Pure”, “Authentic”, “Genuine”, “Real”, “Traditional”, and “Original” on food labels or advertisements. For an Ayurveda Aahara product, these words can only be used when the product satisfies the specific conditions given in the Schedule; misleading uses such as “natural goodness” are restricted.

The Exact Legal Text:

SCHEDULE – V

[See regulation 9 (2)]

Use of certain words or phrases

The following words or phrases used as specified in column 1 shall be used according to the conditions listed in column 2:

Sl. No. 1. — Natural

The word may be used to describe:

(a) A single food, derived from a recognised source viz., plant, animal, microorganism or mineral and to which nothing has been added and which have been subjected only to such processing which would only render it suitable for human consumption like:

(i) smoking without chemicals, cooking processes such as roasting, blanching and dehydration and physical refining;

(ii) freezing, concentration, pasteurization, sterilisation and fermentation;

(iii) packaging done without chemicals and preservatives.

(b) Permitted food additives that are obtained from natural sources by appropriate physical processing.

(c) Composite foods shall not themselves be described directly or by implication as “natural” but such foods may be described as “made from natural ingredients” if all the ingredients or food additives meet the criteria in (a) and (b) above:

Provided that, the above principles shall also apply to use of other words or expressions such as “real”, “genuine”, when used in place of “natural” in such a way as to imply similar benefits.

Provided further that, the claims such as “natural goodness”, “naturally better”, “nature’s way” shall not be used.

2. Fresh

(a) The term “fresh” shall only be used on products which have not been processed in any manner except, washed, peeled, chilled, trimmed or cut, irradiated by ionizing radiation not exceeding 1kGy or other processing necessary for making the product safe for consumption without altering its basic characteristics in any manner. If such processing also leads to extension in the shelf-life of the product the term “fresh” shall not be used.

(b) The term “fresh” or “freshly” shall have no other connotation than the immediacy of the action being described. A food containing additives or subjected to packaging, storing or any other supply chain processes that control freshness shall not be termed as “freshly stored”, “freshly packed”, etc.:

Provided that “Fresh” may be permitted to be used along with “frozen” if it is clear from the context. - “Frozen from fresh” “fresh frozen” “Freshly frozen”— which would indicate that the food was quickly frozen while still fresh.

3. Pure

(a) The term “pure” shall only be used to describe a single ingredient food to which nothing has been added and which is free from avoidable contamination and the levels of unavoidable contaminants shall need to be below the levels prescribed in the Food Safety and Standards (Contaminants, Toxins and Residues) Regulations, 2011 or in any other standard given under Food Safety and Standards Act, Rules and Regulations thereof.

(b) Compound foods shall not generally be described, directly or by implication, as “pure” but such foods may be described as “made with pure ingredients” if all the ingredients meet the criteria in (a) above.

(c) “Pure” shall not be included in any brand or fancy names, nor in coined or meaningless phrases, in such a way as to imply that a food that does not meet the criteria above is pure or made from pure ingredients.

4. Authentic, Genuine, Real

These terms may be used only if the label or advertisement also clarify in what way the overall quality is tangibly justified and why the particular term has been used.

5. Traditional

The term “traditional” shall demonstrably be used to describe a recipe, fundamental formulation or processing method for a product that has existed for a generation (thirty years), should have been available substantially unchanged, for that same period.

6. Original

(a) The term “original” shall only be used to describe a food that is made to a formulation, the origin of which can be traced, and that has remained essentially unchanged over time. It should not contain replacements for major ingredients. It may similarly be used to describe a process, provided it is the process first used in the making of the food, and which has remained essentially unchanged over time, although it may be mass-produced.

(b) To be termed “original”, a product shall not have changed to any material degree and shall remain available as the ‘standard’ product when new variants are introduced. A product re-introduced onto the market after a period of absence shall only be described as “original” if it can be shown to meet these criteria.

PAWAN AGARWAL, Chief Executive Officer
[ADVT.-III/4/Exty./356/18]

Keywords/Triggers:

Natural food claim

Fresh food claim

Pure food claim

Authentic food claim

Genuine food claim

Traditional formulation

Original food formulation

Misleading food claims